

for an associate. Counsel provides details on each attorney's education and experience. Counsel also supports their requested rates by referring to two rate surveys as well as other courts where their rates have been approved. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a "fee enhancement" or "multiplier." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has "set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: '(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.'" *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

Here, the Court declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action which settled at mediation early in the case. No discovery or motion practice were undertaken. While the Court acknowledges the attorneys' skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsels' standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff filed a detailed expense report. GM does not object to any costs. Total costs are \$1,836.10. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$8,400.00 and costs of \$1,836.10 are awarded, for a total of \$10,236.10. A proposed order has been lodged and will be modified.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.

CASE NUMBER: 25CV-0208662

Tentative Ruling on Demurrer: Defendant City of Shasta Lake ("City") demurs to the First Amended Complaint filed on February 27, 2026 on the grounds that the Second, Third, Fifth, and Seventh Causes of Action fail to state a claim upon which relief may be granted. The Demurrer is unopposed.

On May 4, 2026, Plaintiff filed a Second Amended Complaint ("SAC"). Plaintiff did not seek or obtain leave of court to file the SAC, as required by Cal. Code of Civ. Pro. section 472. There is no proof of service of the SAC on file. The City of Shasta Lake is not named as a Defendant in

the SAC. The Court finds that the City's demurrer is mooted by the filing of the SAC. Also on May 4, 2026, Plaintiff filed a Request for Dismissal as to: Kevin Orepeza, City of Shasta Lake, Shasta Lake Sheriff's Department, and Don D. Davis. The clerk did not enter the dismissal because the form is incomplete. Plaintiff must mark either 1.a.(1), or 1.a.(2) indicating whether the dismissal is with or without prejudice.

In light of the SAC not naming the City, and Plaintiff's filing of the Request for Dismissal of the City, it appears clear to the Court that this Demurrer is moot, and the Plaintiff does not intend to proceed against the City in this action. The parties should appear today to confirm the status of the case.

MIDLAND CREDIT MANAGEMENT, INC. VS. WEBB

CASE NUMBER: 26CVG-00137

Tentative Ruling on Motion to Set Aside Default: Defendant Jason Webb moves to set aside default judgment pursuant to CCP 473(b) and 473.5 on the grounds of excusable neglect and lack of actual notice.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. "[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances." *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

CCP 473.5 provides for set aside when service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action.

Here, Defendant has submitted sufficient evidence that his failure to file a responsive pleading was due to failure to receive actual notice. Plaintiff received timely notice of this Motion and did not file an opposition. The Court also notes that Plaintiff recently filed an Amended Proof of Personal Service of Summons, which indicates process was served April 28, 2026.

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. A proposed order has been lodged and will be executed. Defendant is granted ten days leave from notice of entry of order to file a responsive pleading. Note that this necessarily gives Plaintiff more than 30 days from the April 28, 2026 date of service, because this motion was pending when the Amended Proof of Service was filed and is set to be heard on June 8, 2026.